

Warsaw, December 16, 2022

Decision

DKE.561.29.2022

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws 2022, item 2000, as amended) in connection with Article 7 sections 1 and 2 and Article 60 of the Act of May 10, 2018, on the protection of personal data (Journal of Laws 2019, item 1781) and based on Article 58 section 2 letter b) in connection with Article 58 section 1 letters a) and e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of May 4, 2016, p. 1, with amendments published in OJ EU L 127 of May 23, 2018, p. 2, and in OJ EU L 74 of March 4, 2021, p. 35), after conducting administrative proceedings regarding the imposition of an administrative monetary penalty on D. Sp. z o.o. based in K. at ul. (...), the President of the Personal Data Protection Office issues a reprimand to D. Sp. z o.o. based in K. at ul. (...) for violating the provisions of Article 58 section 1 letters a) and e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (OJ EU L 119 of May 4, 2016, p. 1, with amendments published in OJ EU L 127 of May 23, 2018, p. 2, and in OJ EU L 74 of March 4, 2021, p. 35), consisting of failing to provide the President of the Personal Data Protection Office access to personal data and information necessary to perform his duties in the proceedings with reference number DS.523.4141.2022.

JUSTIFICATION

Factual Background

On July 18, 2022, a complaint was submitted to the Personal Data Protection Office by Ms. B. B., residing in K. at ul. (...) (hereinafter referred to as the "Complainant"), regarding irregularities in the processing of her personal data, consisting of processing personal data without a legal basis and disclosing her personal data to the National Health Fund without a legal basis by D. Sp. z o.o. based in K. (hereinafter referred to as the "Company"). In connection with the above, the President of the Personal Data Protection Office (hereinafter referred to as the "President of UODO") initiated explanatory proceedings with reference number DS.523.4141.2022.

As part of the aforementioned proceedings (see point 1 of the justification of this decision), the President of UODO sent a letter to the Company on August 3, 2022, requesting answers to the following questions:

- 1) "whether, and if so, on what legal basis (please specify the specific legal provision), for what purpose and to what extent the Company is currently processing the Complainant's personal data;
- 2) whether there has been a disclosure of the Complainant's personal data to the National Health Fund in connection with the Complainant's registration in the potential personnel of the Company as a provider of outpatient psychiatric services for adults, and if so, when, on what legal basis, for what purpose and to what extent this data was disclosed;
- 3) whether, and if so, on what legal basis (please specify the specific legal provisions), for what purpose, and to what extent the Company processed the Complainant's personal data in November and December 2020 from the moment the Complainant "was suspended from work at the clinic";
- 4) whether the Company made a notification to the National Health Fund regarding the fact that the Complainant "was suspended from work at the clinic" during November and December 2020;
- 5) whether, and if so, when the Complainant approached the Company with an objection to being listed in the potential personnel of the Company and disclosing her personal data to the NFZ; what was the Company's position in this regard and when did the Company respond to the Complainant's request (please send correspondence in this regard), and if the Company did not respond to the Complainant's request, please indicate the reasons for not providing a response."

The request, sent to the Company's registered address, i.e., ul. (...) K., was not received by the Company and was returned to the Personal Data Protection Office (hereinafter referred to as "UODO") with the annotation "RETURNED not collected in time."

In a letter dated September 1, 2022, the President of UODO again contacted the Company with a request for answers to the questions mentioned above (see point 2 of the justification of this decision). Furthermore, the request sent to the Company on September 1, 2022, included a notice indicating that failure to provide explanations may result in the imposition of an administrative monetary penalty on the Company in accordance with Article 83 section 4 letter a) or Article 83 section 5 letter e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (OJ EU L 119 of May 4, 2016, p. 1, as amended) (hereinafter referred to as the "Regulation 2016/679"). This request was also sent to the address... the higher of the two amounts.

****Company Headquarters**** (see point 2 of the justification of this decision), was not collected by the Company and returned to the UODO with the annotation "RETURN not collected in time." The above circumstances of the factual state were established by the President of the UODO based on the entirety of the official correspondence conducted between the Company and the President of the UODO, which is included in the case files under reference DS.523.4141.2022. This correspondence reflects the totality of attempts made by the President of the UODO to gain access to information necessary for the performance of his duties, that is, in this case – to consider the matter under reference DS.523.4141.2022, and on the other hand – the Company's response to the requests of the President of the UODO.

****Proceedings****

In connection with the failure of the Company to provide binding and evidential information necessary to resolve the matter under reference DS.523.4141.2022, the President of the UODO, by letter dated October 14, 2022, initiated ex officio – based on Article 83(5)(e) of Regulation 2016/679 – this administrative proceeding under reference DKE.561.29.2022, concerning the imposition of an administrative fine due to the violation of Article 58(1)(a) and (e) of Regulation 2016/679. The Company was informed of the initiation of the proceedings by letter dated October 14, 2022 (reference: DKE.561.29.2022, delivered to the Company on November 3, 2022). By this letter, the Company was obliged – in order to establish the basis for the fine, based on Article 101a(1) of the Act of May 10, 2018 on the Protection of Personal Data (Journal of Laws of 2019, item 1781, hereinafter referred to as "u.o.d.o") – to provide information on the income achieved for the year 2021, and was also obliged to provide comprehensive explanations in the proceedings under reference DS.523.4141.2022.

In response to the information about the initiation of proceedings by the President of the UODO regarding the imposition of an administrative fine – by letter dated November 15, 2022 – the Company provided comprehensive answers to the questions posed to it by the President of the UODO in the requests dated August 3, 2022, and September 1, 2022 (see point 2 of the justification of this decision) and stated that "it is currently not processing the personal data of the Complainant." The Company also indicated the reason for its lack of response to the proceedings conducted under reference DS.523.4141.2022, which was due to the negligence of a postal operator employee, who did not duly perform his duties, resulting in numerous absences that were not covered by substitutes, which led to the improper delivery of letters in the area of Os. (...). The Company also informed that as a result of numerous complaints from residents, since October 2022, there has been a change of the postal operator employee servicing the area where the Company's headquarters is located. Attached to the aforementioned letter was a confirmation of the return of correspondence, in order to substantiate that the Company did not receive correspondence from the postal operator during that period, including the notification of the delivery of a letter along with information about the possibility of its collection (so-called "notification"). In this response, the Company provided contact numbers to facilitate communication in the proceedings.

After reviewing all the evidence collected in the case, the President of the Personal Data Protection

Office considered the following.

****Legal Provisions****

According to Article 57(1)(a) of Regulation 2016/679, the President of the UODO, as a supervisory authority within the meaning of Article 51 of Regulation 2016/679, monitors and enforces the application of this regulation within its territory. As part of its competencies, the President of the UODO considers, among other things, complaints lodged by individuals whose data are concerned, conducts proceedings regarding these complaints to the appropriate extent, and informs the complainant of the progress and results of these proceedings within a reasonable time (Article 57(1)(f) of Regulation 2016/679).

To enable the realization of such defined tasks, the President of the UODO has a number of powers specified in Article 58(1) of Regulation 2016/679 regarding the conducted proceedings, including the power to order the administrator and the processor to provide all information necessary for the realization of its tasks (Article 58(1)(a) of Regulation 2016/679) and the power to obtain from the administrator and the processor access to all personal data and all information necessary for the realization of its tasks (Article 58(1)(e) of Regulation 2016/679).

The President of the UODO also has a number of corrective powers specified in Article 58(2) of Regulation 2016/679, including the issuance of a reprimand to the administrator or processor in the event of a violation of the provisions of Regulation 2016/679 by processing operations. Acting on the basis of Article 58(2)(b) of Regulation 2016/679, the President of the UODO may deem it justified to issue a reprimand to the administrator or processor in the event of a violation of the provisions of Regulation 2016/679, including the provisions of Article 58(1)(a) and (e) of Regulation 2016/679.

A violation of the provisions of Regulation 2016/679, consisting of the failure of the administrator or processor to provide access to the data and information mentioned above, resulting in a violation of the rights of the authority specified in Article 58(1), is subject – according to Article 83(5)(e) in fine of Regulation 2016/679 – to an administrative fine of up to EUR 20,000,000, or in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applicable.

higher.

Pursuant to Article 60 of the Act on the Protection of Personal Data (u.o.d.o.), proceedings regarding violations of personal data protection regulations are conducted by the President of the Personal Data Protection Office (Prezes UODO). Article 7, paragraph 1 of the u.o.d.o. states that in matters not regulated by this Act, the provisions of the Act of June 14, 1960, the Code of Administrative Procedure (Dz. U. 2022, item 2000, as amended, hereinafter referred to as "k.p.a.") apply to administrative proceedings before the President of UODO (including proceedings regarding the imposition of an administrative monetary penalty, as referred to in Chapter 11 of the u.o.d.o.). According to Article 7, paragraph 2 of the u.o.d.o., these proceedings are single-instance proceedings.

Article 44 §4 of the k.p.a. in conjunction with Article 44 §1 of the k.p.a. in conjunction with Article 45 of the k.p.a. states that the fiction of delivery occurs upon the expiration of the last day of the period, which is 14 days in the case of delivering a letter to the registered office address of a legal entity by a postal operator, and the letter is left in the case files.

According to Recital 148 of Regulation 2016/679, in order for the enforcement of the provisions of Regulation 2016/679 to be more effective, sanctions, including administrative monetary penalties, should be imposed for its violation— in addition to or instead of appropriate measures imposed under Regulation 2016/679 by the supervisory authority. If the violation is minor, the monetary penalty may be replaced with a warning. However, attention should be paid to the nature, gravity, and duration of the violation, whether the violation was not intentional, the actions taken by the administrator to minimize harm, the degree of responsibility, or any relevant previous violations, the manner in which the supervisory authority became aware of the violation, compliance with measures imposed on the administrator or processor, adherence to codes of conduct, and any other aggravating or mitigating factors.

Legal Assessment

Relating the above-mentioned legal basis to the established factual state in this case, it should be acknowledged that the Company, as the administrator of the personal data of the Complainant, being a party to the proceedings with reference number DS.523.4141.2022, violated the obligation to ensure the President of UODO access to personal data and information necessary for the performance of his tasks, which arises from Article 58, paragraph 1, letters a) and e) of Regulation 2016/679, by failing to respond to requests for explanations.

The President of UODO twice summoned the Company to provide explanations in the case with reference number DS.523.4141.2022. Both the summons dated August 3, 2022, and the summons dated September 1, 2022, were not received by the Company, which led to the fiction of delivery of the correspondence, respectively, on August 26, 2022, and September 20, 2022. This omission necessitated the initiation of administrative proceedings regarding the imposition of an administrative monetary penalty on the Company and consequently led to the submission of comprehensive explanations by the Company in the case with reference number DS.523.4141.2022 and to establishing contact with the President of UODO.

In this case, it is undisputed that ensuring the proper organization of correspondence circulation is the Company's obligation. In the assessment of the President of UODO, the justification provided by the Company in the letter dated November 15, 2022, for the lack of response to his summons (see point 6 of the justification of this decision) does not constitute a ground for excluding the Company's liability. Given the indicated problem in communication and with the organization of work of the postal operator, appropriate for the area of the Company's registered office—likely existing for some time—it should be stated that it is in the Company's interest to take actions that will lead to the proper delivery of correspondence by the postal operator's employee. In this proceeding, in accordance with Article 45 of the k.p.a., the President of UODO made a proper delivery of the aforementioned summons, that is, to the address of the Company's registered office, which is consistent with the current excerpt from the Register of Entrepreneurs. However, the Company's explanations should be considered credible; thus, in the assessment of the President of UODO, the discussed problem may have caused the Company's lack of response to these summons, and consequently, in his opinion, the above violation was unintentional. Therefore, it should be acknowledged that from the moment the Company's explanations were submitted to UODO, that is, on November 22, 2022, the state of violation of the provisions of Regulation 2016/679, which is the subject of these proceedings (the beginning of which should be considered the date of September 3, 2022, that is, the date of the expiration of the deadline for submitting explanations set in the summons of August 3, 2022, counted from the moment of the fiction of delivery of this summons), ceased.

No other grounds indicating a lack of willingness to cooperate by the Company with the President of UODO were found. Moreover, upon receiving information about the ongoing proceedings, the Company demonstrated an active attitude and was ready for further cooperation in this proceeding. This leads to the conclusion that the omission in the form of the Company's failure to receive and respond to the summons from the President of UODO in the proceedings with reference number DS.523.4141.2022 was not intentional.

In light of the above, the President of UODO deemed it justified to issue a warning to the Company regarding the established violation of Article 58, paragraph 1, letters a) and e) of Regulation 2016/679, while simultaneously accepting that in light of the criteria specified in Article 83, paragraph 2 of Regulation 2016/679, it will be effective and sufficient. However, it should be noted that in the event of a similar occurrence in the future, any warning issued by the President of UODO against the Company will be taken into account when assessing the grounds for the potential imposition of an administrative penalty, in accordance with the principles specified in Article 83, paragraph 2 of Regulation 2016/679. In this factual and legal state, the President of the UODO has decided as stated in the operative part of this decision.

Instruction

The decision is final. The Party has the right to file a complaint with the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery, through the President of the UODO (address: ul. Stawki 2, 00 – 193 Warsaw). The fee for the complaint is 200 PLN. In proceedings before the

Provincial Administrative Court, the Party has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the Party's request submitted before the initiation of the proceedings or during the proceedings. The application is free of court fees.

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